

Civil

9/15

Procedure



REVIEW SESSION
NUMBER ONE

PRESENTED BY
YOUR TUTORS

Agenda for Today

STATUTE OF LIMITATIONS

EQUITABLE RELIEF

DUE PROCESS

NOTICE

**OPPORTUNITY TO
BE HEARD**

PLEADINGS

FRCP SO FAR

TIMELINE

Statute of Limitations

CASE: ANONYMOUS PHYSICIAN V. WININGER

The time in which a person can bring a cause of action.

When Does SOL Begin?

- Occurrence: SOL begins whenever the incident occurs
- Discovery: SOL begins whenever a reasonable person would be put on notice of their injury

Tolling: stopping or pausing the SOL

Equitable Relief

Law v. Equity

- **Law: Cases such as torts or contract suits**
- **Equity: Court orders that require a party to do something or to refrain from doing something to achieve justice (FRCP 65)**
 - **Preliminary Injunction**
 - **Temporary Restraining Order**

Types of Preliminary Relief

Temporary Restraining Order

- Can be issued ex parte without notice
- Max of 14 days, unless extended
- Expedited hearing for preliminary injunction is required
- Adverse party may move to dissolve or modify on 2 days notice

Preliminary Injunction

- Issued only with notice to the adverse part
- Court may consolidate hearing with trial on merits

Winter Test

1. Likelihood to succeed on the merits
 2. Likelihood of irreparable harm without relief
 3. Balance of Equities tips in the plaintiff's favor
 4. Injunction is in the public's interest
- *Permanent injunction is the same, but you need actual success on merits**

Due Process

CONSTITUTIONAL RIGHT

Under the 5th and 14th Amendments of the Constitution, federal and state governments may not deprive someone of life, liberty, or property without due process of the law.

Under the Due Process Clause, citizens have a right to notice and an opportunity to be heard.

*Note that if the fact pattern only describes the state OR the federal court (pay attention!), the rule statement doesn't need to say both

Notice

MULLANE

- must be **reasonably calculated** under **all circumstances** to;
 - **apprise** interested parties of the pendency of the action &
 - afford them an **opportunity** to present their objections
- means employed must be desirous of actually informing the person
- personal service = **always** adequate
- chosen method must **NOT** be **substantially less likely** to notify than other **feasible and customary substitutes**
 - **i.e.** compare *this* notice to *other possible* approaches

Notice

GREENE

- look closely at the **context** and **facts** to determine what notice is reasonable
 - **i.e.** notice posted on door is often appropriate, but wasn't in *Greene* because of the context.
- if there is a reason the normal method **won't** work, then it is **not** reasonable
- may need **supplements!**
- mail is often useful - but **not** always!

JONES

- notice failing ≠ inadequate notice
 - reasonableness of notice is evaluated **ex ante**
- *however*, if government **KNOWS** that notice did in fact fail, it **MUST** take additional reasonable steps, if practicable

Opportunity to be Heard

Under ***Fuentes v. Shevin***, to provide “due process” (as required under 5th and 14th amendment), the Opportunity to be Heard must be granted:

1. “at a meaningful time” and “in a meaningful manner”
2. “at a time when the deprivation can still be prevented,” except in “extraordinary situations”

*** Extraordinary situations= supporting a war, preventing a bank failure, protecting the public from misbranded drugs or contaminated food

Opportunity to be Heard

Doehr Test = Balancing test for prejudgment deprivation of life, liberty, or property

- 1) Private interest affected by the prejudgment measure
 - What/How much is D losing? A lot or a little?
- 2) Risk of erroneous deprivation, and likely value of additional procedural safeguards
 - The more info the court lacks due to the lack of procedure → the higher the risk of erroneous deprivation
 - Suggest some additional procedures the court could implement & explain their value
- 3) Burden of more procedure for the party seeking the prejudgment measure, and any burden on government
 - What could happen if D was not deprived of the thing? Ex: Is D showing signs of running off with the thing, hiding their assets, etc
 - Consider how much your proposed additional procedures from 2) would cost for the government and for P

Pleadings

Background: “reasonable inquiry under the circumstances” (Rule 11)

Complaint

- Pleading in the alternative (Rule 8)
- Heightened standards for fraud or mistake (Rule 9(b))

Answer

- Must admit or deny (partial allowed) or deny under lack of knowledge (Rule 8(b))
- 12(b) defenses *Can also be raised as a pre-answer motion
 - 12(b)(2)-(5) - if not raised in answer, waived
 - 12(b)(1) jurisdiction - can be raised at any time
 - 12(b)(6) failure to state a claim - can be raised until trial

Pleadings

Earlier *Conley* standard: “Plaintiff **cannot prove any set of facts** in support of his claim.”

- The Complaint must allege enough factual matter that gives plausible grounds to infer the Defendant’s illegal conduct. (*Twombly*)
- Plausibility pleading steps: (1) set aside legal conclusions, (2) assume all factual allegations are true, and (3) ask if those facts would lead to legal liability. (*Iqbal*)
- Complaint does not need to expressly invoke the exact law. (*Johnson*)
- Circumstantial evidence enough to infer wrongdoing is sufficient (*In re Text Messaging*) *Note: Rule 11
- Plausible does not mean the most likely inference. (*Swanson*)

Quiz Takeaway - legal conclusion vs. factual statement

FRCP so far

Starting the Case & Notice

Rule 2 / 3 — one “civil action,” started by filing a complaint

Rule 65 — injunctions

- **65(a):** notice required before a preliminary injunction
- **65(a):** court may consolidate PI hearing with the merits trial
- **65(b):** TRO can issue without notice — but must show why, limited in time, expedited hearing

Rule 4 — notice

- Due Process is the floor; Rule 4 can demand more
- **4(c):** served by any non-party 18+
- **4(d):** waiver → 60 days to answer; no waiver → 21 days (+ costs)
- **4(e) / 4(h):** individual vs. corporation
- **4(m):** 90 days to serve, or dismissal without prejudice

FRCP so far

Pleading the Complaint

Rule 7 — complaint, answer, (if ordered) reply

Rule 8(a) — jurisdiction + “**short and plain statement** of the claim **showing** that the pleader is entitled to relief” + demand for relief

Rule 8(d) — “simple, concise, and direct”; may plead in the alternative “regardless of consistency”

Rule 9(b) — fraud or mistake with “particularity”; malice, intent, knowledge “alleged generally”

Rule 11(b) — filing certifies, after “an **inquiry reasonable** under the circumstances,” that claims are nonfrivolous and facts have support

Rule 11(c) — sanctions; 21-day safe harbor; “**limited** to what suffices to deter”

FRCP so far

Responding & Amending

Rule 8(b) — “admit or deny”; may deny in part; “lacks knowledge or information” = denial

Rule 8(c) — affirmative defenses go in the responsive pleading

Rule 15 — amendment

- **15(a)(1)**: once as of right, 21 days after serving or after a response
- **15(a)(2)**: otherwise leave — “freely give leave when justice so requires”
- Opposing party bears the burden of showing “bad faith” or “undue prejudice” (*Aquaslide*)

Rule 12 — timing

- **12(a)**: answer in 21 days (60 if waived); 14 days after a Rule 12 motion is denied
- **12(b)**: 7 defenses may come by pre-answer motion instead
- **12(g)**: consolidate available 12(b) defenses in one motion
- **12(h)**: waiver trap — 12(b)(2)–(5) waived if not raised; 12(b)(1) any time; 12(b)(6) through trial

Timeline so far

PLEADINGS: Rule 7

**REASONABLE
INQUIRY**

Rule 11

EQUITABLE RELIEF

PRELIMINARY
INJUNCTION OR TRO

Rule 65

Winter Test

DUE PROCESS

NOTICE

Rule 4

Mullane Standard

Jones Standard

Greene Standard

OPPORTUNITY
TO BE HEARD

Fuentes Standard

Doehr Test

COMPLAINT

Rule 8

Conley Standard

PLAUSIBILITY

Twiqbal Test

Johnson Standard

In re Text Messaging Standard

Swanson Standard

ANSWER

Rule 8(b)-(c)
Rule 12

- No answer =
Default
Judgment

(Rule 41, 55)

- Answer must be:
“admit”/“deny”/
“not enough
info”

AMENDMENT

Rule 15

****STUDY TIP:**

If you are a visual learner, try writing this timeline (with the fully fleshed out tests/rules) on a whiteboard, iPad, or paper!